

Ghalendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 May 2022 · Writ-C No. 3856 of 2022 · **Writ disposed on licensee's statement; petitioner to file para 6.8 objection, decided by speaking order after hearing.**

HEADNOTE

A writ seeking quashing of a recovery citation was disposed of on the electricity licensee's statement that the consumer may file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within three weeks, to be decided by a speaking and reasoned order within four weeks after hearing. The citation was not examined on merits.

FACTUAL SUMMARY

Ghalendra Singh filed a writ in the Allahabad High Court seeking certiorari to quash a recovery citation dated 23 December 2021 issued by respondent no. 3, and mandamus restraining the respondents from compelling deposit of any amount under that citation. Counsel for the petitioner, the State, and respondent no. 4 (the electricity licensee) were heard. On instructions, the licensee's counsel stated that the petitioner could file an objection under para 6.8 of the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation

HOLDING

A writ challenging a recovery citation may be disposed of on the licensee's statement that the consumer may file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided by a speaking and reasoned order after a hearing, without examining the citation on merits. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy

Writ against a recovery citation disposed on the licensee's statement that the petitioner may file a para 6.8 objection within three weeks, to be decided by speaking order within four weeks after hearing. ¶ 1

fresh-objection-under-clause-6.8

Petitioner given three weeks to file a fresh para 6.8 objection; if filed in time, the licensee to decide it after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 23.12.2021

The Court neither quashed nor upheld the citation; the writ was disposed solely on the licensee's 6.8-objection statement. ¶ 1